

COMPANY INFORMATION

Name —
Type —
Address —
Office Email —
Phone —

JOB INFORMATION

Name —
Job # —
Type —
Start —
End —

Rental Policies

Cancelation Policy

If notice of cancelation is provided less than 24hrs from the date of pickup, you agree to pay (1) daily rate for all equipment and vehicles booked. Whenever possible, SirReel will re-rent the canceled equipment and vehicle(s) and waive the cancelation fee for those item(s). Notice of cancelation must be provided in writing via email to your SirReel account representative.

Missing Equipment Return Policy

Any equipment missing from an order return will be billed as a loss. Loss invoices are Net15 (due 15 days from receipt). Any missing equipment returned within the 15 day payment period will be removed (or refunded) from the invoice. Any equipment returned after the 15 day payment period will be issued as a credit, with the standard rental cost of the equipment deducted from the credit total based on the number of days from the final day of the 15 day payment period and the missing equipment return date.

Administrative Fee

SirReel applies a ten percent administrative fee to all loss, theft, or damage charges. This fee covers internal processing, documentation, coordination with third parties, and administrative labor related to the claim.

Discounts Policy

All discounts are on Quickpay terms and invoices must be paid via credit card within 5 days. 5 days after the final invoice is sent, the discounts will expire and will not be reinstated. If your project has negotiated a Quickpay discount, please make sure payment is made within 5 days to avoid forfeiting that discount.

Payment Terms

Long-term projects (where the first and last day of rental spans more than 14 days) require payment in full before the first day of rental. Clients with accounts that have existing payment terms require a 50% deposit prior to the first day for long-term projects. Rentals used for any type of 'event' must be paid in full before the first day of rental.

Equipment and/or Vehicle Terms & Conditions

Please read carefully. You are liable for our equipment and vehicles from the time they leave our premises until the time they are returned to us and we sign for them.

1. Indemnity

Lessee/Renter ("You") agree to defend, indemnify, and hold SirReel Production Vehicles, Inc. dba SirReel Studio Rentals our agents, employees, assignees, suppliers, sub-lessors and sub-renters ("Us" or "We") harmless from and against any and all claims, actions, causes of action, demands, rights, damages of any kind, costs, loss of profit, expenses and compensation whatsoever including court costs and attorneys' fees ("Claims"), in any way arising from, or in connection with the Vehicles and Equipment rented/leased (which vehicles and equipment, together, are referred to in this document as "Equipment"), including, without limitation, as a result of its use, maintenance, or possession, irrespective of the cause of the Claim, except as the result of our sole negligence or willful act, from the time the Equipment leaves our place of business when you rent/lease it until the Equipment is returned to us during normal business hours and we sign a written receipt for it.

2. Loss of or Damage to Equipment

You are responsible for loss, damage or destruction of the Equipment, including but not limited to losses while in transit, while loading and unloading, while at any and all locations, while in storage and while on your premises, except that you are not responsible for damage to or loss of the Equipment caused by our sole negligence or willful misconduct.

3. Protection of Others

You will take reasonable precautions in regard to the use of the Equipment to protect all persons and property from injury or damage. The Equipment shall be used only by your employees or agents qualified to use the Equipment. Aerial lifts, scissor lifts, boom lifts and powered material-handling equipment shall be operated only by persons you have trained, evaluated and authorized to operate equipment of that type as required by Cal/OSHA, and you will produce that documentation on request.

4. Equipment in Working Order

We have tested the Equipment in accordance with reasonable industry standards and found it to be in working order immediately prior to the inception of this Agreement, and to the extent you have disclosed to us all of the intended uses of the Equipment, it is fit for its intended purpose. Other than what is set forth herein, you acknowledge that the Equipment is rented/leased without warranty, or guarantee, except as required by law or otherwise agreed upon by the parties at the inception of this Agreement.

5. Property Insurance

You shall, at your own expense, maintain at all times during the term of this Agreement, all risk perils property insurance ("Property Insurance") covering the Equipment from all sources (Equipment Rental Floater or Production Package Policy) including coverage for, without limitation, (i) theft by force (ii) theft by fraudulent scheme and/or "voluntary parting" (iii) mysterious disappearance (iv) loss of use of the Equipment. Coverage shall begin from the time you or your or agents pick the Equipment up at our place of business, or take delivery of the Equipment, whichever is applicable, and shall continue until the time the Equipment is returned to and accepted by us. The Property Insurance shall be on a worldwide basis shall name us as an additional insured and as the loss payee with respect to the Equipment and shall cover all risks of loss of, or damage or destruction to the Equipment. The Property Insurance coverage shall be sufficient to cover the Equipment at its replacement value but shall, in no event, be less than \$1,000,000. The Property Insurance shall be primary & Non-Contributory coverage.

6. Workers Compensation & Employers Liability Insurance

You shall, at your own expense, maintain worker's compensation/employer's liability insurance during the course of the Equipment rental with minimum limits of \$1,000,000. Including coverage for the use of any volunteers, interns, or independent contractors working on your behalf and under your supervision.

7. Liability Insurance

You shall, at your own expense, maintain commercial general liability insurance ("Liability Insurance"), including coverage for the operations of independent contractors and standard contractual liability coverage. The Liability Insurance shall name us as an additional insured and provide that said insurance is primary & Non-Contributory coverage. Such insurance shall remain in effect during the course of this Agreement, and shall include, without limitation, the following coverages: standard contractual liability, personal injury liability, completed operations, and product liability. The Liability Insurance shall provide general liability aggregate limits of not less than \$2,000,000 (including the coverage specified above) and not less than \$1,000,000 per occurrence. Where the rental includes generators or other fuel-burning equipment, the Liability Insurance shall also include coverage for pollution, spill and contamination arising from that equipment, its fueling, and its operation.

8. Vehicle Insurance

You shall, at your own expense, maintain business motor vehicle liability insurance ("Vehicle Insurance"), including coverage for loading and unloading Equipment and hired motor vehicle physical damage insurance, covering owned, non-owned, hired and rented vehicles, including utility vehicles such as trailers. Coverage for physical damage shall include "comprehensive" and "collision" coverage. We shall be named as an additional insured with respect to the liability coverage, and as a loss payee with respect to the physical damage coverage. The Vehicle Insurance shall also include coverage for pollution caused by any vehicles. The Vehicle Insurance shall provide not less than \$1,000,000 in combined single limits liability coverage and include replacement cost for physical damage and shall provide that said insurance is primary coverage & Non-Contributory with respect to all insureds, the limits of which must be exhausted before any obligation arises under our insurance.

9. Insurance Generally

All insurance maintained by you pursuant to the foregoing provisions shall contain a waiver of subrogation rights in respect of any liability imposed by this Agreement on you as against us. You shall hold us harmless and indemnify us from and shall bear the expense of any applicable deductible amounts and self insured retentions provided for by any of the insurance policies required to be maintained under this Agreement. In the event of loss, you shall promptly pay amount of the deductible amount or self-insured retention or the applicable portion thereof to us or the insurance carrier, as applicable. Notwithstanding anything to the contrary contained in this Agreement, the fact that a loss may not be covered by insurance provided by you under this Agreement or, if covered, is subject to deductibles, retentions, conditions or limitations shall not affect your liability for any loss. Should you fail to procure or pay the cost of maintaining in force the insurance specified herein, or to provide us upon request with satisfactory evidence of the insurance, we may, but shall not be obliged to, procure the insurance and you shall reimburse us on demand for its costs. Lapse, reduction in coverage or cancellation of the required insurance shall be deemed to be an immediate and automatic default of this agreement. If this happens, we need to be immediately notified of such occurrence. The grant by you of a sublease of the Equipment rented/leased shall not affect your obligation to procure insurance on our behalf, or otherwise affect your obligations under this Agreement.

10. Cancellation of Insurance

You and your insurance company shall provide us with not less than 30 days written notice prior to the effective date of any cancellation or material change to any insurance maintained by you pursuant to the foregoing provisions.

11. Certificates of Insurance

Before obtaining possession of the Equipment you shall provide to us Certificates of Insurance confirming the coverages specified above. All certificates shall be signed by an authorized agent or representative of the insurance carrier.

12. Drivers

Any and all drivers who drive the Vehicles you are renting/leasing from us shall be duly licensed, trained and qualified to drive vehicles of this type. Although we may, from time to time, recommend certain qualified drivers with whom we are familiar, we do not supply drivers. You must supply and employ any driver who drives our Vehicles (even if the driver is the registered owner of the vehicle or owner of a company that owns the vehicle) and that driver shall be deemed to be your employee or covered independent contracted driver for all purposes and shall be covered as an additional insured on all of your applicable insurance policies.

13. Compliance With Law and Regulations

You agree to comply with the laws of all states in which the Equipment is transported and/or used as well as all federal and local state laws, regulations, and ordinances pertaining to the transportation and use of such Equipment. Without limiting the generality of the foregoing and by way of example, you shall at all times (i) display all necessary and proper placards; obtain all necessary permits; and (iii) keep all required logs and records. You shall indemnify and hold us harmless from and against any and all fines, levies, penalties, taxes and seizures by any governmental authority in connection with or as a result of your possession or use of the Equipment including, without limitation, the full replacement value of the Equipment in the event of seizure or impound, including our reasonable costs and attorney's fees.

14. Valuation of Loss / Our Liability is Limited

Unless otherwise agreed in writing, you shall be responsible to us for the replacement cost value or repair cost of the Equipment (if the Equipment can be restored, by repair, to its pre-loss condition) whichever is less. If there is a reason to believe a theft has occurred, you shall file a police report. Loss of use shall be determined by the actual loss sustained by us. Accrued rental charges shall not be applied against the purchase price or cost of repair of the lost, stolen or damaged Equipment. In the event of loss for which we are responsible, our liability will be limited to the contract price and WE WILL, IN NO EVENT, BE LIABLE FOR ANY CONSEQUENTIAL, SPECIAL OR INCIDENTAL DAMAGES.

15. Subrogation

You hereby agree that we shall be allowed to subrogated for any recovery rights you may have for damage to the Equipment.

16. Bailment

This agreement constitutes an Agreement or bailment of the Equipment and is not a sale or the creation of a security interest. You will not have, or at any time acquire, any right, title, or interest in the Equipment, except the right to possession and use as provided for in this Agreement. We will at all times be the sole owner of the Equipment.

17. Condition of Equipment

You assume all obligation and liability with respect to the possession of Equipment, and for its use, condition and storage during the term of this Agreement except as otherwise set forth herein. You will, at your own expense, maintain the Equipment in good mechanical condition and running order. The rent on any of the Equipment will not be prorated or abated while the Equipment is being serviced or repaired for any reason for which you are liable. We will not be under any liability or obligation in any manner to provide service, maintenance, repairs, or parts for the Equipment, except as otherwise specially agreed or as may be within the course and scope of employment by you. All installations, replacements, and substitutions of parts or accessories with respect to any of the Equipment will become part of the Equipment and will be owned by us.

18. Identity

We will have the right to place and maintain on the exterior or interior of each piece of property covered by this Agreement the following inscription: Property of SirReel. You will not remove, obscure, or deface the inscription or permit any other person to do so.

19. Expenses

You will be responsible for all expenses, including but not limited to fuel, lubricants, and all other charges in connection with the operation of the Equipment.

20. Accident Reports

If any of the Equipment is damaged, lost stolen, or destroyed, or if any person is injured or dies, or if any property is damaged as a result of its use, maintenance, or possession, you will promptly notify us of the occurrence, and will file all necessary accident reports, including those required by law and those required applicable insurers. You, your employees, and agents will cooperate fully with us and all insurers providing insurance under this Agreement in the investigation and defense of any claims. You will promptly deliver to us any documents served or delivered to you, your employees, or your agents in connection with any claim or proceeding at law or in equity begun or threatened against you, us, or both of us.

21. Default

If you fail to pay any portion or installment of the total fees payable hereunder you otherwise materially breach this Agreement, then such failure or breach shall constitute a default ("Default"). Upon the occurrence of any such Default, and in addition to all other rights and remedies available at law or in equity, we shall have the right, at our option, to terminate this Agreement and cease performance hereunder. You further agree that the continuation of our performance hereunder after a Default shall not constitute a waiver or operate as any form of estoppel with respect to our later assertion of its right to cease such performance at any time so long as such Default has not been cured.

22. Return

Upon the expiration date of this Agreement with respect to any or all Equipment, you will return the property to us, together with all accessories, free from all damage and in the same condition and appearance as when received by you.

23. Additional Equipment

Additional Equipment may from time to time be added as the subject matter of this Agreement as agreed on by the parties. Any additional property will be added in an amendment describing the property, the monthly rental, security deposit, and stipulated loss value of the additional Equipment. All amendments must be in writing and signed by both parties. Other than by this amendment procedure, this Agreement may not be amended, modified, or altered in any manner except in writing signed by both parties.

24. Entire Agreement

This Agreement and any attached schedules, which are incorporated by reference and made an integral part of the Agreement, constitute the entire agreement between the parties. No agreements, representations, or warranties other than those specifically set forth in this Agreement or in the attached schedules will be binding on any of the parties unless set forth in writing and signed by both parties.

25. Applicable Law

This Agreement will be deemed to be executed and delivered in Los Angeles, California and governed by the laws of the State of California.

26. Arbitration

Any controversy or claim arising out of or related to this Agreement or breach of this Agreement will be settled by arbitration, in Los Angeles, California, under the auspices of the Judicial Arbitration and Mediation Service ("JAMS"). The arbitration will be conducted by a single arbitrator under JAMS Streamlined Arbitration Rules. The decision and award of the arbitrator will be final and binding and any award may be entered in any court having jurisdiction. The prevailing party in any such arbitration shall be entitled to an award of reasonable attorneys fees and costs in addition to any other relief granted.

27. Severability

If any provision of this Agreement or the application of any of its provisions to any party or circumstance is held invalid or unenforceable, the remainder of this Agreement, and the application of those provisions to the other parties or circumstances, will remain valid and in full force and effect.

28. Facsimile Signature

This Agreement may be executed by facsimile signature and such signature shall be deemed a valid and binding original signature.

29. Non-smoking policy

All vehicles are non-smoking vehicles and lessee is responsible for all damages caused from smoking in or near the vehicles. A \$250 per day fee may be charged lessee in addition to the cost to repair any damaged items if the smoking policy is not observed.

30. Third-Party Equipment

Some Equipment supplied under this Agreement is owned by third parties from whom we rent it, and is supplied to you on the same terms as Equipment we own. Where such Equipment is delivered to you directly by its owner rather than from our premises, the owner's pre-delivery inspection and delivery record stand in place of our testing under Section 4, and Section 16 is read as our right to rent, possess and re-rent that Equipment rather than to own it. Every obligation you owe us under this Agreement with respect to Equipment — including the insurance required by Sections 5 through 11, your responsibility for loss under Section 2, and your indemnity under Section 1 — applies to that Equipment identically, and each owner of such Equipment is an additional beneficiary of your indemnity under Section 1 and an additional insured and loss payee under the insurance required above, to the same extent we are.

Fleet Agreement

In addition to the terms above, the following provisions apply specifically to fleet vehicle rentals (Cubes, Vans, Stakebeds, Location Trailers, Trucks & Motorhomes).

Lessee acknowledges that they will be charged \$10.00 for each gallon necessary to return the vehicle to the fuel level it went out with.

Limited Collision Damage Waiver Addendum

Limited Collision Damage Waiver — \$24/day/vehicle

By accepting the Limited Collision Damage Waiver (LCDW), Lessee agrees to pay \$24.00/day/vehicle and to pay all costs above \$1,000. In exchange, SirReel waives its claim to the first \$1,000 in loss of or damage to the vehicle caused by collision with another vehicle or property, including loss of use, towing, storage, impound, and administrative charges. LCDW IS NOT INSURANCE.

This waiver does NOT apply to: intentional acts; damage due to insufficient height or clearance (including roof and overhead-clearance damage); improper loading; abusive handling; towing or pushing without SirReel's written permission; operation by an unlicensed driver or a driver whose license is suspended or revoked; use of the vehicle in any manner prohibited by this Agreement; or theft of the vehicle or any of its components.

The Limited Collision Damage Waiver is ONLY available for fleet rental vehicles such as: Vehicles (Cubes, Vans, Stakebeds, Location Trailers, Trucks & Motorhomes).

Acceptance/decline of LCDW must be confirmed in writing per fleet vehicle rental.

This document reflects SirReel's negotiation position based on per-clause review of the client's redlined agreement. It is a proposal for discussion and does not itself constitute an executed contract.